

Constitution of India, Philosophy and

Unit 1 : Introduction

- ① Meaning, nature and importance of constitution.
- ② Indian constitutional development.
- ③ Constituent assembly making of Indian constitution and role of Dr. B.R. Ambedkar.

Unit 2 : Constitutional Philosophy & Its values

- ① Preamble.
- ② Citizenship.
- ③ Features of Indian constitution.

Unit 3 : Constitutional Rights & Duties

- ① Fundamental Rights.
- ② Fundamental Duties.
- ③ Directive Principles of state policy.

I Meaning :-

Defⁿ:- Constitution means to form or to establish
 It means the formation or establishment of
 the fundamental law which determines the
 political structure of the state.

constitution

↓ derived from

Latin word 'constitute'

↓

To form / compose / establish

(It is an act of establishment of government)

From the above defⁿ it is clear that constitution
 is the ^{P. Vol.} fundamental law of the land
 which establishes the main organs of the
 state that is the ^{mainly out law} ^{settle dispute & give justice}

① Legislature ② The executive ③ Judiciary
 defines their powers demarcates their
 responsibilities & regulate their relationships
 with one another. defines the powers of
 the central & the state govt and also
 regulates the relation b/w the people and
 the state by listing the rights & duties

makes laws

Q. The citizens

2/10/24

II Nature and importance of constitution

Nature / characteristics of constitution

- ① Type of Political structure - Democratic / Socialism / Monarchy
- ② Type of Government - Parliamentary / Presidential
- ③ Type of State structure -> Federal / Unitary
-> bicameral / unicameral / both bicameral and unitary

Written / unwritten constitution -> Indian
(flexible constitution)

Nature of the constitution

The characteristic features of our constitution are as follows

- ① The constitution determines the political system of the country such as democracy, socialism etc.
- ② The constitution determines the structure of the state that is unitary or federal
- ③ The constitution determines the form of government that is parliamentary or Presidential

④ The constitution establishes the main organs of the state that is the legislature, the executive and the judiciary. Define their powers, responsibilities and the regular their relationships with one another.

⑤ Constitution contains the laws which govern the distribution of powers between the center and the state.

⑥ Constitution of our country may be written that is systematically documented or may be unwritten

⑦ The constitution may be detailed or brief

⑧ The constitution may be rigid or flexible.

I Importance of constitution

① It is essential for the operations of the any state. Constitution guides the way to go on and achieve the 'social' 'economic' 'stability'

② It puts the government responsible It is a law under which a government should operate.

③ It saves the fundamental rights of people and makes the government responsible

Set whether people enjoy their rights.

④ It provides aims and objectives of any nation. There is no state without any social and economical objectives.

⑤ It works as an instrument of change. It helps in reforming the goals of the society.

III Indian constitutional development ↓

1947 - The Mountbatten mission.

Governor general → representative of British King
director - East India company.

1857 → 1st Free Indian war of Independence.
1858 → Indian act.

Secretary of India → another person, member of

British cabinet.

held vice royal control India.

along with 15 members.

Indian Council act - 1861

1861 - Indian's entered legislature as non official members.

1858 Government of India act -

↓
1861

Indian Council act, 1861
non official members.

↓
1892

(indirect election) (representative chosen by British
cabinet or budget)

↓
1909

(direct election) (communal representation)

Indian Council act of 1909

making milnro. system, allowed in executive council.

↓
1919

government of

India act 1919

4/10/24

1858 - 1947 (King's rule).

Government of India Act - 1858

Rule of EIC (East India company) (removed power

of dual govt. (- EIC only) Britishness

to transferred Act) - enhanced communal representation

to widening voting

↓
1935

Govt of India act 1935

Indian constitutional development

The period of historical british constitutional experiments in India can be divided into two parts:

- Phase (1) constitutional experiment during the rule of East India Company.
(1773-1857)

Phase 2 - constitutional experiments under the british Crown (1857-1947)

Phase 2 constitutional development rule under british crown

(1) Government of India Act of 1858

- This act was passed by british parliament brought an end to the rule of East India Company. the powers were transferred to the british crown.

- The secretary of state for India was given the powers & duties of the former post of directors the controlled the Indian administration to the viceroys of India.

- The secretary of state for India was associated by the council of India consisting of 15 members which acted like an advisory body.

(2) Indian Council Act of 1861

- Indians were nominated as non-official members for the first time in the legislative council of viceroys.
- legislative council were established in provinces and centers.

(3) Indian Council Act of 1892

- The legislative council was given more power they had had the power to debate on the budget & ask questions to the executive.
- Direct election was introduced for the first time.
- Indian Council

② Indian Council Act 1909

- This act is also called Morley-Minto reform.

- For the first time direct elections were introduced for the legislative council.

- The central legislative council was renamed as Imperial Legislative Council.
- Communal representation was introduced. It was a system where seats were reserved only for Muslims and only Muslims could be vote.

- For the first time Indian's were appointed to the executive council of Viceroy.

③ Government of India Act 1919

- This act is also called as Montagu-Chelmsford reform.

- Bismarckism was introduced for the first time.

- Diarchy (Dual governance) was introduced in the provincial subjects. It was divided into Reserved

③ Amendment

- The transferred list included agricultural, health, education, and supervision of local government.

- The reserved list included communication, foreign affairs, defence and audit under the control of Viceroy.

- Out of 6 members in Viceroy Executive Council 3 of them were Indians.

- Public service commission was established for the first time.

④ Government of India Act of 1935

- This was the largest and the last constitutional measure introduced by British India. It was the result of multiple round table conference & a report by the Symon Commission.

- Bismarckism was introduced in 6 provinces, each of 11 provinces.

- As per the act the powers were divided into federalist, provincial list and reserved list.

- Provincial autonomy was introduced in

the provinces by removing directly.

- Provided provisions for establishing federal court, reserve bank of India

Cripps mission - 1942

• ^{independence} Dominion status could be given to India after second world war

- Once the second world war ends an elected body could be set up in India for framing of Indian constitution

• Almost the parties & sections in India rejected the proposals given by the Cripps mission

Cabinet mission - 1946

- Indian states & the British provinces would combine to form union of India
- A constituent assembly should be establish consisting of 389 members
- 14 members from major political parties would form an ~~interim~~ interim government
- A representative body could be form name as the constituent assembly.

- until the constl was framed India would be administered as per the government of India Act 1935.

The Mount Batten Plan / Indian Independence

• Act of 1947

- The British India was partition into India & Pakistan with effect from 15 aug 1947.

- ~~The~~ They complete legislative authority to the constituent assembly
- Establish government in both provinces & states.

July

Cabinet Mission

↓ direct election

Member of Provincial Legislative Assembly

↓ indirect election

Members of Constituent Assembly (1946)

↓ 389 (original membership)

↓

Dr. Rajendra Prasad (President)

Dr. B.R. Ambedkar (Chairman)

1st election 9th Dec 1946 P.V.9

↓ Partition

399 (final membership)

↓

Drafting committee

↓

29th August 1947

↓

7 members including chairman,

↓

1st draft Feb 1948

↓ Dr. B.R. Ambedkar

2 years, 11 months, 18 days for completion. P.V.9

↓ ~~Dr. B.R. Ambedkar~~

15/10/24

↓

26th Nov 1949 (completed) → actual 284

↓

26th Jan 1950 (completed)

Constituent Assembly

• The constituent assembly is a body composed of the purpose of drafting or adopting or constituting

• The members of the constituent assembly of India were chosen by indirect election by the

members of the provincial legislative assemblies which was according to the recommendation of

the cabinet mission.

• The cabinet mission stated that there should be

392 members but due to provisional legislative assembly 193 members represented

Indian princely states 844 members

represented chief commission provinces

thus the total membership was 1297

Dr. Rajendra Prasad became the president

Dr. B.R. Ambedkar was appointed as

chairman.

• The constituent assembly that had been elected for conducting India held its

Q. No. 9

First meeting on 9th December 1946.

- As a result of the partition under the plan of June 3, 1947, a separate constituent assembly was setup for Pakistan.
- The representatives of Bengal, Panjab, Sind, non western frontier province, Baluchistan, and the Sylhet & Assam opposed to be the members of constituent Assembly of India, & there was a fresh election in the new province of west Bengal & East Panjab.
- As a result of the partition when the constituent assembly reassembled the membership of the house was reduced to 399.
- Of these 284 were actually present on 28th November 1949, and gave their signatures to the constitution has final passed.

Indian constitution

Cabinet mission plan.

- At the end of world war 2 the British government sent 3 of its ^{senior} ministers to India for a solution to the question of India's independence.
- This ~~three~~ ^{group} of ministers was called cabinet mission.
- The cabinet mission made it clear that the objective was not to lay down the details of the constitution but to speedy start a process ~~that~~ ^{which} by constituent would be framed by the Indians for the Indians.

(2) Constituent assembly

(3) Drafting committee

- On 29th August 1947 a drafting committee under the chairmanship of Dr. B. R. Ambedkar was formed by the constituent assembly.
- The drafting committee had 3 members including the chairman B. R. Ambedkar.
- The first draft was prepared by B. N. Rau and was ready by Feb 1948.
- The constituent assembly discussed the draft and took 8 years 11 months & 19 days to finally pass the constitution.

② Commencement of the constitution of India

- Some of the provisions of the constitution of India especially those relating to citizens P. was immediately put into force to enable the displaced persons from Pakistan to register themselves as the citizens of India.

- The constitution as the whole however came into force only with effect from 26th Jan 1950 This is the date of the commencement of Indian constitution.

Content of the Indian constitution

- The constitution of India as originally adopted had 395 articles & 9 schedules ~~and~~
- At present the Indian constitution is divided into 25 parts & 12 schedules.

Source of Indian constitution

Q.1. Source of Indian constitution

Ans.

Art 1 Provision / Law

Source

- ① Basic structure of our political system, provisions of regulating the union state relations, declaration of emergency

Government of India Act of 1935.

- ② concept of directive principle

Irish constitution

para

- ③ Parliamentary system

with ministers responsible to the

legislature and

the provisions relating to the issue of writs

British constitution

- ④ Fundamental Rights

Principle inspired by

US constitution (America)

- ⑤ Fundamental duties

Russian constitution

State of India Act 1948 - 1950

② The federal structure and the provisions related to union state relation, distribution of powers b/w union & state.

Canadian constitution

③ Emergency provision

German constitution

④ Provisions making the president the executive head of the state and the supreme commander of the armed forces & the provisions relating to the election having the vice president, ex-officio chairman of the council of state

US constitution

III. Role of Dr. B.R. Ambedkar

• On August 29, 1947, Dr. Ambedkar was appointed the chairman of the drafting committee. That was considered by constitutional assembly to draft a constitution for independent India. The major contributions are

① Fundamental rights - Ambedkar was a champion of fundamental rights and part-3 of the Indian constitution guarantees the fundamental rights to the citizens against the state.

② Parliamentary democracy - He firmly believe that the parliamentary system of government alone can bring the quality in society through the application of the principles of social democracy. The preamble of the Indian constitution highlights the principles of parliamentary democracy.

③ protective discrimination / reservation - The new constitution of India is replete with the protective discrimination scheme of the reservation policy of the govt.

band office 24/15 the
Yth goal of Indian constitution.
18/10/24

Unit-2]

Constitutional Philosophy and its 12/11/24

Value

I. Preamble

The Preamble of the Indian Constitution is as follows.

"We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN, SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens

a

JUSTICE social, economic and political,
LIBERTY of thought, expression,
belief, faith and worship.

EQUALITY of status and opportunity
and to promote among them all
FRATERNITY assuring the dignity of
individuals and unity and integrity of
the nation.

IN OUR CONSTITUTION ASSEMBLY.

THIS 26 day of November, 1949,

DO HEREBY ADOPT AND GIVE

under the provisions of part-3 8
many of part-4, dealing with the
constitutional mandate for the rendition
of the schedule out of SC, schedule
tribes / ST and other backward class
OR

(4) State socialism

The proposed state ownership of agriculture
with a collectivised method of cultivation
on a ^{and a} magnified model form of
state socialism in the field of industry

TO OURSELVES. THIS CONSTITUTION
 Elements of Preamble.

(1) SOVEREIGN

→ we have control over our independence
 any control which is sovereignty
 only they can have the situation
 being independence.

(2) SOCIALIST

→ (minimum) the gap b/w rich & poor

(3) SECULAR

→ not support any religion
 No national religion

(4) DEMOCRATIC

→ by the people of the people
 for the people

(5) REPUBLIC

→ no hereditary ruler

(6) JUSTICE



(7) LIBERTY

→ kind of freedom for unbounded justice
 ↓ on thought, faith, worship

(8) EQUALITY

→ you are equal

(9) FRATERNITY

→ all the religions together
 with the feeling of brotherhood

Notes

Every written constitution begins with Preamble

Purpose of the Preamble

- (1) It indicates the source of the constitution
- (2) It states the basic objective sought to be achieved by the constitution
- (3) It indicates the nature of state the constitution seeks to establish

Elements of the Preamble

(1) SOVEREIGNTY

→ If means absolute independence that is a government which is not controlled by any other power internal or external

(1) Socialist

- In 1996 with 42nd Amendment to the Constitution incorporated socialist as ideology in the preamble.
- The word socialism has been used in the context of economic planning.
- It signifies role of the economy.
- It also means commitment to attain what the removal of inequalities, provision of minimum basic necessities to all equal pay for equal work.

(2) Secularism

- In 1975 after religious minorities no discrimination and religions all implied that in India there will be no state religion the state will not support any particular religion out of public fund.
- This has two implications:
 - ① Every individual is free to believe in and practice any religion he/she belongs to.
 - ② State will not discriminate against any individual or groups on the basis of religion.

(2) DEMOCRATIC

- The last line of the preamble says hereby adapt, enact and give to ourselves this constitution.
- According to the last line democracy is generally known as government of the people by the people and for the people.
- Parliamentary means the government is elected by the people. It is responsible & accountable to the people.

(3) REPUBLIC

- The preamble also declares India as Republic.
- It means that the head of the state is the president who is indirectly elected and he is not a hereditary ruler as in the case of British monarch.

(4) JUSTICE

- ① Political Justice: This means that every citizen the members of the legislature of the union and of each state shall be elected by the vote of entire adult population.

• According to the principle one man one vote

→ (8) Economic Justice

• It means no discrimination b/w men & women on the basis of income, wealth and economic status. It stands for equitable distribution of wealth the end of monopolistic control over means of production and distribution, elimination of economic resources and the securing of adequate opportunities to all for earning.

→ (9) Social Justice

It means the absence of socially privileged classes in the society and no discrimination against any citizen on the basis of cast, colour, religion, gender all place of birth India stands for eliminating all forms of exploitation from society.

(7) LIBERTY

It signifies not only the absence of any unwarranted restrictions on the freedom of individual actions but

also the creation of conditions which provide essential ingredients constituted of individuals social progress depends on the progress of the individual.

(8) EQUALITY

Each individual is assured of equality of status and opportunity for the development of the but in him and the means for the enjoyment of the rights guaranteed to him.

(9) FRATERNITY

Spirit of Brotherhood among all sections of the people is ~~the~~ feeling that they are all children of the same soil & the same motherland.

III. CITIZENSHIP

Q.1

Legal relationship.

Person

State/Community.

gives loyalty

gives protection.

Legal relationship b/w person & community where
in person gives loyalty and community gives protection.

Note:

Citizenship is defined as the legal relationship between an individual and the state under which the individual pledges his loyalty to the state and the state offers protection to the individual.

- Citizenship is confined only to natural or physical persons.
- It is not extended to corporations and juristic persons.
- There are two kinds of citizenships they are

(1) Single citizenship

(2) Dual citizenship

① Single citizenship: It means that a citizen of a country has a single or only one citizenship for the entire country.
Example: India.

② Dual citizenship. It means that a citizen of a country has 2 citizenship that is
(i) Federal citizenship (citizenship of the union)
(ii) State citizenship (citizenship of the state)
e.g. USA & Switzerland.

Significance of citizenship

- ① Citizenship determines the relationship b/w the state and the citizen.
- ② Citizenship signifies power & membership of an individual to the country that is true citizenship. ~~Active~~
- ③ A citizen exercises loyalty to the nation, in return the nation provides protection to the citizens.
- ④ Citizenship means to a person the right to vote and the right to contest in the elections through the legislation, in other words citizenship provides to a person

opportunity to participate in politics.

- ⑤ citizenship provides certain special rights that is fundamental rights to a person.
- ⑥ citizenship gives to a person the right to contest the elections for the office of the president or vice president of the country.

Citizenship at the commencement of the constitution

- ① Who are born in the territory of India
- ② Either of whose parents first born in the territory of India.
- ③ Who had been ordinarily residing in the territory of India for not less than 5 years after the commencement of constitution of India.

Citizenship act of 1955

The act made provisions for acquisition & termination of citizenship.

acquisition of citizenship

Under the act of 1955 Indian citizenship may be ~~be~~ acquired by:

- ① Birth.
- ② Descent $\rightarrow$ jus sanguinis
- ③ Registration
- ④ Naturalisation $\rightarrow$ non Indian born
- ⑤ Incorporation of territory

Loss of Indian citizenship: Termination

The citizen of a person may terminate

- ① By giving up of citizenship.
- ② Voluntarily through voluntary acquisition of citizenship of the other country $\rightarrow$
- ③ Through deprivation of citizenship by order of the government $\rightarrow$ involuntary
- ④ A woman loses her citizenship by marrying a foreigner
- ⑤ A person loses citizenship if he/she remains absent for a long period from the native state.

III. Features of Indian Constitution.

- ① Longest written constitution in the world.
- ② It consists of 395 articles, 18 schedules and 87 amendments. 182 parts are the reason for the lengthy character.
- ③ The framers of the constitution not only laid down fundamental principles of the government but provided matters of administrative details.
- ④ It provides rules for the administration for both centre & states.
- ⑤ There are separate chapters about fundamental rights & directive principles of state policy.
- ⑥ Another reason for bulky character is it has dealt with problems of scheduled (castes) scheduled tribes (ST), regional & linguistic etc.

→ ② Preamble

- ① It indicates the source of the constitution and gives a objective of the constitution.
- ② It also points out the nature of the state.
- ③ It is supposed to indicate its contents.
- ④ It says that India should be a sovereign socialist, secular, democratic & republic state. It insures to all its people justice, liberty, equality and fraternity.

→ ③ A sovereign, socialist, secular & democratic republic

- ① Sovereign: India has emerged as an independent state, a independent nation of internal & external politics India will be guided by a national interest and not by external power.

- ② Socialist / Socialism: means removal of socio-economic imbalance providing a material justice.

- ③ Secular / Secularism: the religions in

the country however small in their strength have the same status and same prestige and support from the state.

There will be freedom of liberty of faith & worship.

(iv) Democratic

It signifies that the real power comes from the people.

constitution introduced universal adult franchise (right to vote).

Both inherent sovereignty best with the people who are the masters of the nations destiny.

(v) Republic

The Constitution has made India a republic.

The head of the state that is the president is elected indirectly by the people. It does not provide place to a king or a monarch to rule India.

→ ④

⑤ Establishment of Federal Policy

Article 1 of the constitution of India says "India that is Bharat shall be union of states."

Though the word federation is not in the government it's federal a state is federal when

① There are two sets of a government
② There is distribution of power between the two

③ There is a written constitution which is "The Supreme law of the land"

④ There is an independent judiciary to interpret the constitution and settle dispute between the centre and the state.

⑤ All this features are present in India but despite of all this essential features of our federation Indian constitution has an unitary tendency.

⑥ There is also single integrated judiciary for the whole country.

⑦ All India service (Indian administrative & police service) and Indian forest service, post and telegraph service.

→ (5) Fundamental Rights.

The constitution of India provides the basic principles that every individual is entitled to enjoy certain basic rights. and part III of the constitution deals with these rights which are known as fundamental rights.

Originally there were 7 categories of rights but now they are 6 in number.

They are:-

- (1) Right to Equality / 14-16
- (2) Right to Freedom
- (3) Right against exploitation
- (4) Right to freedom of religion
- (5) ~~Cultural~~ and Educational Rights.
- (6) Right to constitutional remedies

^{was by 44th amendment 1978 it is now}
fundamental right has been removed
or a legal right

→ (6) Directive Principles of The State.

Policy

(1) These principles are in the nature of directives to the government to improve it for establishing social and economic democracy in the country. It includes important principles like

- (1) Adequate means of livelihood.
- (2) Equal pay for both men & women
- (3) Distribution of wealth so as to provide the commonhood for and compulsory

- y primary education.

- (4) Right to work
- (5) Public assistance in case of old age, unemployment, sickness, disability, etc.

- (6) The organisation of village Panchayat
- (7) Special care to the economically backward class of the people.

③ Partly Rigid and Partly Flexible

① The constitution of India is neither purely rigid nor purely flexible.

② Some parts of the constitution can be amended by the ordinary law.

③ Such provisions can be amended only when a bill for that purpose is passed in each of the houses of parliament by a majority of ~~as a~~ a total membership of that house and by a majority of not less than 1/2 of ~~than~~ the members of that house present and voting.

④ Fundamental Duties

① A new part IV (A) after the directive principle of a state policy was incorporated in the constitution by the 42nd amendment 1976 for fundamental duties.

② The purpose of incorporating these duties in the constitution is just to remind the people that a citizen, by enjoying these rights as citizens, they

should also perform duties rightly as ~~the~~ rights and duties are correlated.

⑨ Secular state

① India is a secular state because it makes no discrimination between individuals on the basis of religion.

② It neither encourages nor discourages any religion.

③ On the contrary, Right to freedom of religion is ensured in the constitution and people belonging to any religious group have the right to practice and propagate any religion they like.

⑩ Independent Judiciary

① The judiciary occupies an important place in our constitution and is also made independent of the legislative and executive.

② The supreme court of India stands at the tip of integrated-judiciary system.

They act as a protector of fundamental rights and guardian of the constitution.
 eg) any law passed by the legislature or action taken by the executive contradicting the provision of the constitution. they can be declared as the null and void by the supreme court thus it has the power of Judicial review.

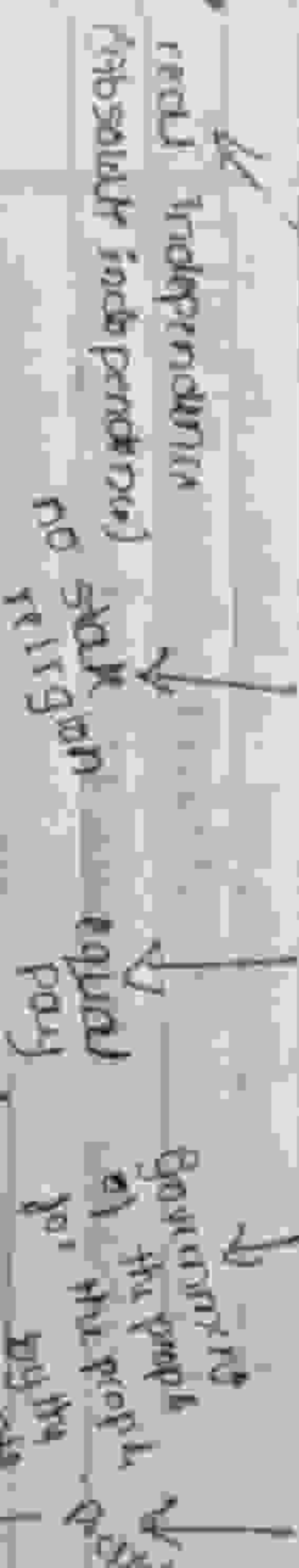
1) Single Citizenship

- ① The constitution of India recognises only single citizenship.
- ② In India we are the citizens of India only and not of the respective states to which we belong.
- ③ This provision would help in promoting unity and integrity of the nation.

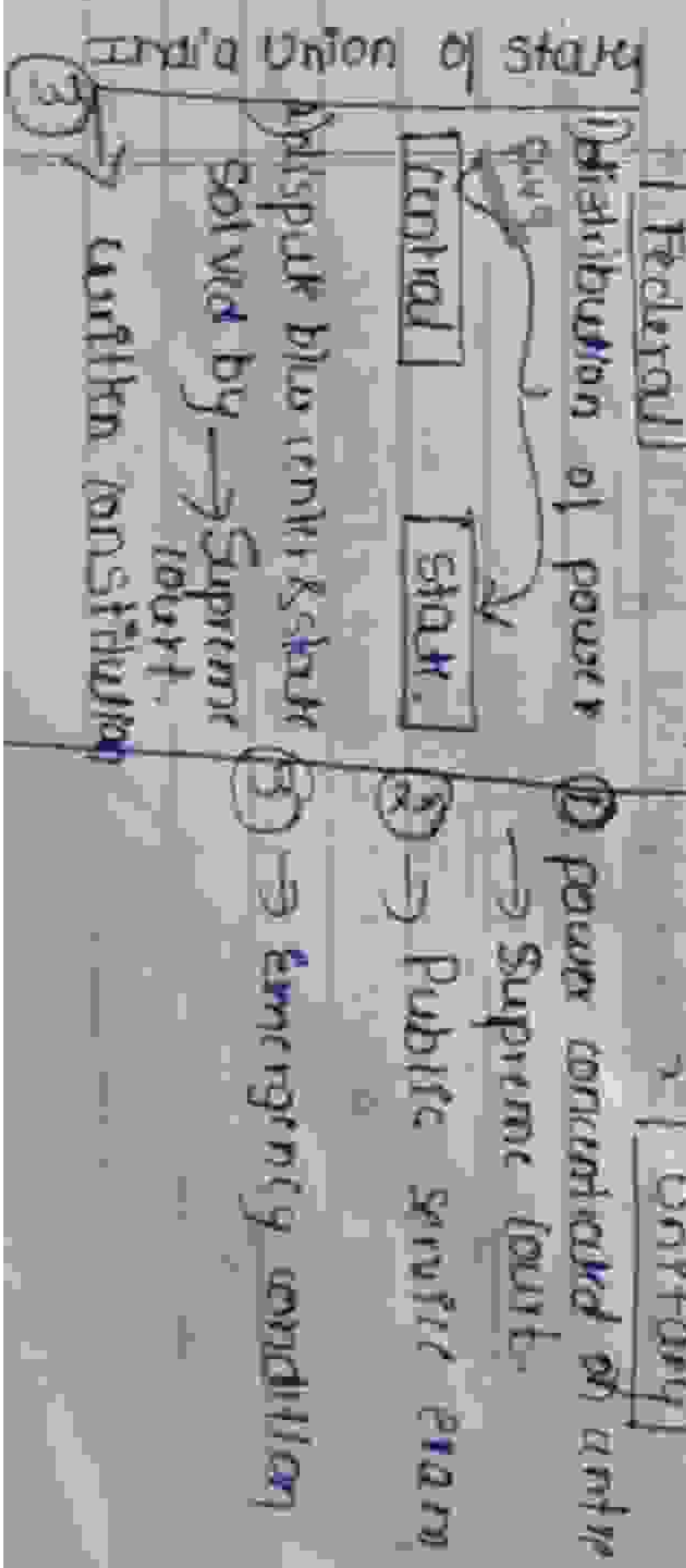
Features of Indian Constitution

Features of Indian Constitution

- ① Longest constitution → explained in detail to avoid misunderstanding
- ② Preamble → begins with Preamble Summary
- ③ Sovereign, Secular, Socialist Democratic Republic



④ Establishment of federal Body



dispute between states

5 Fundamental Rights

- (1) Right to freedom
- (2) Right to equality
- (3) Right against exploitation
- (4) Right to freedom of religion
- (5) Right to constitutional remedies ^{part 3 sec 22}
- (6) Cultural and educational rights

(7) ^{internationally} Right to life

6 Fundamental Duties

(7) Secular state (all religions are equal)

(8) Directive Principles of State Policy ^{give direction to govt}

(9) Independent Judiciary

→ power to supreme court given by constitution

(10) Partly rigid & partly flexible ^{used fully rigid b/wn-jury flexible}

(11) Single citizenship

असंगतता
असंगतता का उपयोग ब्रिटिश-असंगतता - dual citizenship

असंगतता का उपयोग ब्रिटिश-असंगतता - dual citizenship

असंगतता का उपयोग ब्रिटिश-असंगतता - dual citizenship

1 Unit 3

CONSTITUTIONAL RIGHTS AND DUTIES

1 FUNDAMENTAL RIGHTS

Part 3, Sec 12

Fundamental Rights are the basic rights conferred on the citizen by the constitution of the country and which are essential for a man to lead a dignified and the respectable life and to attain the fullest development of his human personality

Significance of fundamental rights

(1) The fundamental rights are checked on the ~~authoritative~~ authoritative authority of the state.

(2) Fundamental rights make the life of the people meaningful.

(3) The existence of oppressed people in our country is dangerous to nation's peace. The removal of oppressed people entry is possible only through the empowerment of fundamental rights.

(4) Fundamental rights of citizens are absolutely essential for the functioning of democracy. ex. If freedom of expression (which includes freedom of speech & freedom of press) is

denied deprives the people of the right to criticize and change their government which is absolutely necessary for the proper working of democracy

Part III (Article 12 to 35) deals the fundamental right granted to individual

Classification of Fundamental Rights
The fundamental rights incorporated in [part III] of the constitution of India are amended are classified under 6 main categories they are:-

- (1) Right to equality [Article 14-18]
- (2) Right to freedom [Article 19-22]
- (3) Right against exploitation [Article 23-24]
- (4) Right to freedom of religion [Article 25-28]
- (5) The cultural & educational rights [Article 29-30]

* (6) Right to constitutional [Article 32-45] remedies

ARTICLE 14 - EQUALITY

→ (1) Right to Equality (Article 14-18)

Right to equality means equality in all its forms that is legal, civil and social various rights included in right to equality are

- (1) Equality before law [Article 14]
- (2) Prohibition of discrimination [Article 15]
- (3) Equal opportunity [Article 16]
- (4) Abolition of untouchability [Article 17]
- (5) Abolition of titles [Article 18]
- (6) The right

→ (2) Right to Freedom (Article 19-22)

Protection of certain rights and of life and personal liberty and against arrest and detention

Article 19 of our constitution as amended guarantees 6 basic and valuable freedom to the citizens of India they are

- (1) Freedom of speech and expression
- (2) Freedom to assemble peacefully and without arms
- (3) Freedom to form association and unions
- (4) Freedom to move freely throughout the territory of India

→ (5) Freedom to visit and settle in any part of the territory of India.

(6) Freedom to practice any profession or carry on any occupation, trade or business
in Article 28, 21, 22 of our constitution
guarantee's protection in respect of
function for allness, protection of life
and personal liberty, protection against
arrest and detention

→ (3) Right Against Exploitation (Art. 24, 23, 24)
Exploitation means misuse of the
services of someone by force or tradition.

Right against exploitation puts a ban
on:
① Trafficking human beings and
all forms of force labour (Art. 24, 23)

→ (2) Employment of children below
the age of 14 years in hazardous
(dangerous) operations (Art. 24, 23)

(3) Right

→ (4) Right to freedom of Religion (Art. 25-28)

The concept of secularism as embodied
(included) in our constitution suggest

① There is no state religion

② There is equal respect and protection
for all religions

③ No one is to be discriminated
against on the basis of religion

④ Everyone is guaranteed full and
equal freedom of religion

⑤ Right to freedom of religion includes
freedom to manage religious affairs

freedom as to payment of taxes for
promotion of any particular religion

⑥ Freedom as to attendance at religious
institutions for certain educational
institutions.

⑦ Freedom of conscience and Religion

→ (5) Right to Constitutional remedies

Most important article 22 'Soul of the Constitution'

'Heart of the Constitution'

The fundamental rights are bound to ~~be~~ be their significance if they are not safeguarded by constitutional remedies. That is why there

is no effective constitutional remedy

to the enforcement of the fundamental rights

there the former of our constitution has made special provisions under Article 32 for

the enforcement of fundamental rights

Article 32 of the constitution guarantees

the right to move to highest court of the

land that is the Supreme Court directly

by appropriate proceedings for the

enforcement of fundamental rights.

→ (6) Cultural and Educational Rights

* Article 29(1) of the constitution of India

guarantees to every section of the citizens

residing anywhere in India and having

distinct language, script or culture the

right to preserve their language script or

culture

As per Article 29(1) minorities also have the

right to preserve their language script or

culture

* Article 29(2) of the constitution provides

that no citizens can be denied the admission

to any educational institution maintain

or aided by the state on the basis of

any religion, race, caste or language

minority. Article 29(2) guarantees even to

minorities the right of admission into

any educational institution maintain

by the state or aided by the state

Article 30(1) of the constitution

says that all minorities whether based

on religion or language have the right

to establish and administer educational

institutions of their choice

- [Article 30(2)] of the constitution provides that the state shall not discriminate against any minority educational institution in the matter of grant in aid from state fund.

FUNDAMENTAL DUTIES

51st Fundamental Duties 1976

- * Rights and duties are correlated
- * Fundamental duties are there for intended to serve as the constant reminder to every citizen that why the constitution specifically compel on them certain fundamental rights. It also requires citizens to observe certain basic norms (values) of democratic conduct and democratic behaviour.

Sources of Fundamental Duties

- ① We have made a 'fundamental duty' on the lines of the 'Chapter on the citizens duties of the Soviet Union' and 'Russia' country.
- ② on the recommendation of Swaran Singh committee.

The Indian constitution includes the fundamental duties in the constitution through the 42nd amendment act in 1976.

Fundamental included in Article 51A

- ① To abide the constitution and respect its ideals and institutions the national flag & national anthem.
- ② To cherish and follow the noble ideals which inspired our national struggle for freedom.
- ③ To uphold and protect the sovereignty, unity and integrity of India.
- ④ To defend the country and give national service when called upon to do so.
- ⑤ To ~~not~~ promote harmony & the spirit of common brotherhood among all the people of India transcending religious, linguistic, regional diversities, to renounce, practices, derogatory to the dignity of women.
- ⑥ To value and preserve the rich heritage of our composite culture.

- (7) To protect and include the natural environment including forest, lakes, rivers & wild life and to have compassion for ~~be~~ living creatures
 - (8) To develop the scientific temper to humanism and the spirit of enquiry and reform
 - (9) To safeguard public property and to avoid violence
 - (10) To strive towards excellence in all spheres of individuals and collectively so that the nation constantly rises to higher levels of achievements
- As parents/guardians to provide opportunities for educations to his/her child b/w the age of 6 years to 14 years

~~The~~ There were 10 fundamental duties but in 1992, 66th amendment act added the 11th fundamental duty.

Significance of Fundamental Duties

- ① They serve as a reminder to the citizens that while enjoying their rights they should also keep the conscious of duties they owe to their country, their society & to their fellow citizens.
- ② They serve as warning against the anti-national and anti-social activities like burning the national flag, destroying public property and so on.
- ③ They serve as a source of inspiration for the citizens and promote a sense of discipline and commitment among them they create a feeling that the citizens are not just spectators for but active participant in the realisation of national goals.
- ④ They help the court in ascertaining & determining the constitutional validity of a law. In 1992 the supreme court ruled that in determining the constitutionality of any law if a court finds that the law in question seeks to give effect to a

fundamental duties it may consider such law to be reasonable in relation to article 14 (equality before law) and article 19 (6m freedoms) and they say a such laws from constitutional parliament can provide for the imposition of appropriate penalty or punishment for failure to justify any of them

constitutional rights & duties, also part of

Fundamental rights

Part III

significance of

fundamental rights ⇒ checks unwanted actions of government

⇒ maintenance of national peace

⇒ make the life of the people meaningful

⇒ Remove oppressed people from society

⇒ for proper working of democracy

Internally if rights ⇒ Right to property, legal right (4th right)

⇒ Fundamental right

⇒ (Act 19-18) ① Right to Equality

⇒ (Act 19-22) ② Right to Freedom

⇒ (Act 23-24) ③ Right against exploitation

⇒ (Act 25-28) ④ Right to freedom of Religion

⇒ (Act 29-30) ⑤ Cultural & Educational rights

⇒ (Act 32-45) ⑥ Right to constitutional remedy

+ Art 32 & 33, 44 - saved by Parliament

Article 21 - Prison
 20, 21, 22 - for Prison

① Right to equality ⇒ equal before law
 (Art. 14, 18)

⇒ ③ prohibition of (Article 15)
 discrimination

⇒ ③ equal opportunity

⇒ ④ abolition / removal of (Art.)
 untouchability

⇒ ⑤ abolition / removal of (Art.)
 untouchability

(Raja Maharoja)

② Right to freedom ⇒ ① Freedom of speech & expression
 (19-22)

Article 19

⇒ ③ Form unions (Students)
 workers, clubs (sports)
 political party

⇒ ③ Assemble (public meeting)
 no tax levies (peacefully)

⇒ ④ Travel anywhere in country

⇒ ⑤ Reside anywhere

⇒ ⑥ choose any occupation

Article
 20-21, 22

for Prison

③ Right against exploitation (23, 24)

Article 23 - human trafficking, forced
 labour
 Article 24 - Right to work in
 fair
 wages

④ Right to freedom of religion (25, 26)

⇒ Freedom of conscience & religion → connection with

⇒ Freedom of religious affairs

⇒ Freedom from paying tax or

donation for religious promotion.

⇒ Freedom to buy & sell movable &

immovable prop.

⇒ Freedom from attending religious institutions

⑤ Cultural & Educational Rights → 29, 30

⑥ Right to constitutional remedies 32-35

→ Right & social or constitutional

rights are protected by this

31 - Right

to life

Fundamental Duties

Source - Singh Committee -
Proposed as citizens duty - 1946
and are - Fundamental Duties, 1946

Swaran Singh Committee

↓ recommended

Fundamental Duties

and Amendment 1976

Part IV A

Source - Soviet Constitution Commission

Chapter with citizen's duties

Directive Principles of State Policy

* The provision of directive principles of state policy in our constitution is a unique feature of a constitution

Source -

It is based on the principles of social policy given in the constitution of Ireland for the inspiration for the inclusion of directive principles of state policy came from the concept of welfare state.

* The ~~the~~ directive principles of state policy are included in Part IV of a constitution

* This includes total 16 articles that is articles 36 to 51

Grand themes

- ① supremacy of law → secular
 - ② unity & integrity of constitution or integrated Assembly
 - ③ fundamental rights - ITB
 - ④ union of states - constitutional
 - ⑤ 12 scheduling - present 395 articles
- responsibilities
of govt
to right to property - 44 article

all citizens rights of fundamental rights at right to

to citizenship act - 1955

right to property

not a fundamental right

→ single citizenship - india.

Fraternity → splint of brotherhood.

→ unity of the following objectives day
the preamble does not have, not product

Meaning of Directive Principles of State Policy

The directive principles of state policy contain in our constitution are the aims and objectives to be achieve by the central and state government in the generally the country

Nature of directive principles of state policy

* The directive principles are the guidelines objectives which framers of constitution which to be implemented by the future govt of the country

* They are the positive directions or instructions to be followed for running the govt and form making laws.

* They aim that establishing social and economical democracy

* They are the foundation of the welfare state

* As they are the ideals they cannot be implemented at once they have to be implemented the one stage.

* as they are not justifiable they is they are not legally enforceable. course of law the govt cannot be compelled by the courts to implement them.

regulatory behind directive principles of state policy

* To set out the direction or instructions to be implemented by the state to bring out economic democracy

* To set standards of achievements before the legislature and the executive by which they are success or failure can be judged.

* To see that the failure to implement the directive principles gives the govt a rudder shows up the directions

significance of Directive principles of state policy

* they serve as standing reminder to the union and state govt to make laws and formulate policy in accordance with the spirit of directive principles

* they clearly laid down that of ideals goal is achieving economic democracy

* ~~the~~ possible conflict b/w the rights of the individually and the needs of the community or society is sought to be resolved by place in restrictions on the fundamental rights themselves on the one

and by is incorporated the directive principles in the constitution on the other

* directive principles are not rigid article 37 of our constitution declares

that the directive principles are fundamental in the ground of the country and it is the duty of the state to apply the

directive principle of making law that means the directive principles are not just moral precept but a possibility the of enacted.

- * Directive principle constitute an operative part of the constitution in the sense that it is through the directive principles that the constitution tries to achieve the ideal of a democratic welfare state.
- * set out in the preamble of constitution.
- * Even the judiciary falls back upon the directive principle by interpreting the law as the directive principles aim at common welfare and laid down the basic objectives for which the state exist.
- * The directive principles are relevant to consider what are the measures to restrictions under article - 19 on fundamental rights.
- * The importance of directive principle as mirror, guiding after some amendments were made in our constitution in 1971 and 1978 they clearly indicate the intention of the legislature to give ^{weightage} ~~weightage~~ to these directives over the fundamental rights.

Difference between fundamental rights & Directive principles of state policy (DPS)

- ① Fundamental rights are justiciable that is legally enforceable whereas DPSP are not justiciable.
- ② Fundamental rights are self enforceable but DPSP can be implemented only if there is a legislation to carry out the DPSP.
- ③ Fundamental rights are concerned with the rights of the people and they are limitation upon state action that is they ~~expect~~ restrict the state from interfering with the ~~free~~ life of law abiding citizen where as DPSP are instructions to the state to do certain things and achieve certain goals.
- ④ Fundamental rights are mainly concerned with civil liberties whereas DPSP aims at the establishment of social justice.
- ⑤ Fundamental rights provide political freedom and aims at political democracy whereas DPSP aims at establishing socioeconomic democracy and economic development.

⑤ Fundamental Rights are finite but DPSP are not finite.

⑦ The DPSP have to perform as an as subsidiary to the fundamental rights.

⑧ spoke of fundamental right is limited where as the spoke of DPSP is wide.

⑨ In the case of any conflict (right) b/w fundamental rights & DPSP the fundamental rights would prevail.

⑩ For the implementation of DPSP Pt may become necessary to respect certain fundamental rights of the individual.

ex: nationalisation of banks & reforms removal of right to property etc. The judiciary also upheld such actions of the state. again since the wing idea of DPSP is welfare of the people the DPSP have supremacy over fundamental rights.

⑪ Various DPSP's are

Various DPSP's are

① Reparation of state in connection with DPSP

② obligation or promise of the state to apply DPSP in making law

③ obligation to provide livelihood

④ equal justice and prelegal aid to economically weaker classes

⑤ Organisation of village Panchayat

⑥ Employment, education & public assistance to all citizens

⑦ rest and human condition of work and maternity relief for women workers

⑧ living wage for workers (safety for daily workers)

⑨ participation of workers in management of industrial

⑩ Children civil code

⑪ free & compulsory education for children

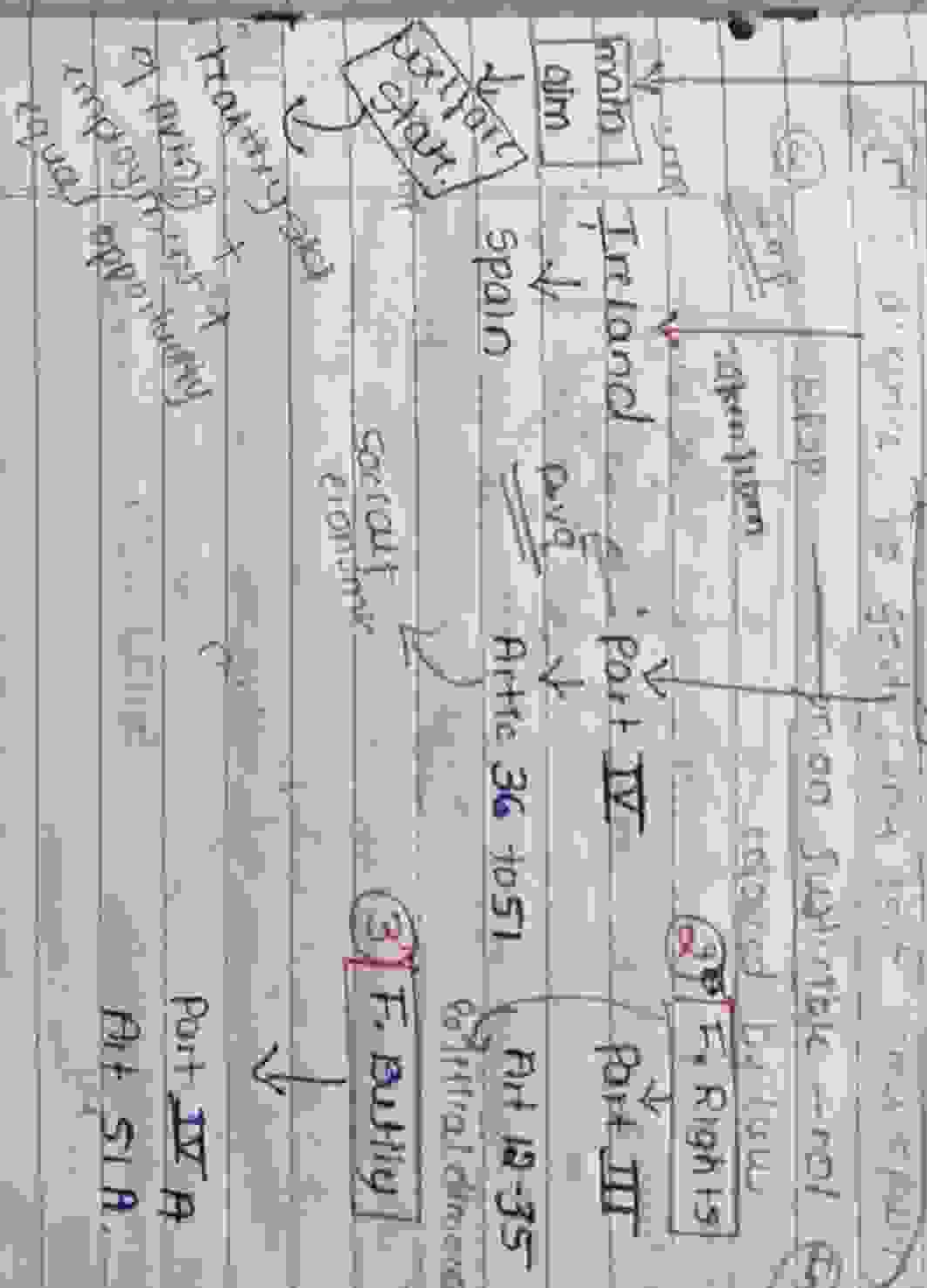
⑫ Promotion of educational & economic interest of weaker sections

⑬ Raising the level of nutrition & standard of living & improvement of public health

- (14) organisation of agriculture and animal husbandry on modern & scientific lines
- (15) Protection & improvement of environment & safe guarding of forest and wild life
- (16) Protection of monuments & places and places & objects of national importance
- (17) Separation of Judiciary from executive
- (18) Promotion of international peace & security

1 Directive Principle of State Policy

(20PSP)



P.V.Q

- ① The final interpreter of the Indian Constitution
- a) President
 - b) State
 - c) Parliament
 - d) Supreme court ✓
- ② The Constituent Assembly was set up according to
- a) Wavell plan
 - b) cabinet mission plan ✓
 - c) Cripps mission plan
 - d) Simon commission
 - b) cabinet mission
- ③ Who was the constitutional advisor to the constituent Assembly
- a) T.T. Krishnamachari
 - b) B.N. Rao ✓
 - c) M.N. Roy
 - d) K.M. Munshi
 - b) B.N. Rao (also prepared first draft)
- ④ Which is the historic date in the constitutional history of India
- a) 26th Jan 1950 ✓
 - b) 26th Nov 1949
 - c) 15th Aug 1947
 - d) 2nd Aug 1948

- ⑤ F. Rights can be suspended
- a) By the Parliament
 - b) By the Supreme court
 - c) Prime minister
 - d) P ✓
- ⑥ By the Supreme court
- ⑦ President during national emergency

- ⑧ 'Untouchability' is associated with
- a) Political
 - b) Economic
 - c) Religious
 - d) Social ✓

- ⑨ Which of the following rights abolish discrimination
- a) Right to equality ✓
 - b) Right against exploitation
 - c) Freedom of religion
 - d) Cultural & Educational rights
 - a) Right to equality

8) DPSP are the direction to people of
a) People of India
c) President
b) State
d) Prime ministers

9) DPSP are

- a) Justiciable
- b) Sometimes Justiciable
- c) Non Justiciable ✓
- d) All of the above
- e) Non Just

10) Implementation of DPSP depends on
a) Resources of the state b) will of the state ✓
c) Population of people
d) Judicial decision

b) will of state

11) Promotion of international peace & security is

- a) Fundamental Duty b) DPSP ✓
- c) Objective of Preamble d) Junction of govt
- b) DPSP

12) Which one of the following DPSP is based on Gandhian Ideology
a) compulsory education for all children up to the age of 14 years
b) Prohibition of consumption of intoxicants
c) Establishment of Village Panchayat ✓
d) Establishment of water section
e) Establishment of village

13) Which article of the constitution guarantees the right to life & personal liberty

- a) article 29
- b) article 19
- c) article 21 ✓
- d) article 32
- e) article 31

14) Constitution determining

- a) nature & form of state
- b) Organisation of powers & function of the 3 organs of govt
- c) Frt R. & duties of citizens
- d) All of the above ✓

Q1 The rule which governs the state is constitution who said it?

- a) Aristotle
- b) K.C. Wheare
- c) Mac Iver ✓
- d) Ferrer

Q2 How many members are set up by the constituent assembly

- a) 18
- b) 22 ✓
- c) 25
- d) 19

e) ~~22~~ 22 ✓

Q3 The constitution of India currently consist of _____ schedules

- a) 12
- b) ~~12~~ 12 ✓
- c) 14
- d) 15

Q4 Who was the provisional chairman of constituent assembly

- a) Madhava Prasad
- b) Dr. B.R. Ambedkar
- c) Sardar Vallabhbhai Patel ✓
- d) K.M. Munshi

e) Sardar Vallabhbhai Patel ✓

Q5 Who drafted the Preamble of the constitution as follows

- a) N.V. Khandekar
- b) B.R. Ambedkar
- c) K.M. Munshi ✓
- d) Dr. Rajendra Prasad

Q6 Article 1 of the Indian constitution states that

- a) India shall be union of states ✓
- b) Federal state
- c) unitary state
- d) Quasi-federal state

Q7 The constitution declares India as

- a) Hinduism
- b) Bharat
- c) Union of states ✓
- d) All of the above

Q8 Which article of the Indian constitution deals with the procedure of amending the constitution

- a) article 368 ✓
- b) article 365
- c) article 369
- d) article 367

- 35) formation of justice is largely from.
- a) USA constitution
 - b) Canada constitution
 - c) Govt. of India act
 - d) Finland constitution
- c) Govt. of

- 36) In which year the first amendment of a constitution of India was made
- a) 1950
 - b) 1976
 - c) 1951 ✓
 - d) 1962
- c) 1951

- 37) Equal Pay for equal work is
- a) F. Right
 - b) DPSP ✓
 - c) Preamble
 - d) none of the above

- 38) Which of the following is not a DPSP
- a) Prohibition of staff slaughter (killing of cow)
 - b) Equal Justice for all
 - c) Equal pay for equal work for both men & women
 - d) Removal of untouchability ✓

- 39) In which year constituent assembly convened (started)
- 1940
 - 1946 ✓
 - 1947
 - 1950

- 40) First session of constituent assembly was held on
- a) Dec 11 1946
 - b) Dec 9 1946 ✓
 - c) Aug 19 1947
 - d) Oct 26 1946

- 41) Cabinet mission plan
- a) 1946 ✓
 - b) 1947
 - c) 1935
 - d) 1947

- 42) In which year secular word was added to the Preamble of constitution
- a) 1970
 - b) 1976 ✓
 - c) 1978
 - d) 1981

- 43) Who was the chairman of drafting committee
- a) Nehru
 - b) Gandhi
 - c) Patel
 - d) Ambedkar ✓

32) objectives of the constitution can be seen in

- a) Principally ✓
- b) legislature
- c) executive
- d) dispute

33) Article 14 of the Indian constitution deals with

- a) equality before law ✓
- b) ban of practice of untouchability
- c) ban of awards
- d) equal opportunity

34) which article of the constitution bans the practice of untouchability

- a) article 14
- b) article 15
- c) article 16
- d) article 17 ✓

35) which article of the constitution bans the abiding illas

- a) article 16
- b) 17
- c) article 18 ✓
- d) 19

36) which article of the constitution deals with fundamental liberty

- a) 18
- b) 19 ✓
- c) 20
- d) 21

37) Article 19 deals with life and individual liberty

- a) 19
- b) 20
- c) 21 ✓
- d) 22

38) who is the guardian of F. Rights.

- a) Supreme court ✓
- b) Parliament
- c) governor
- d) President

39) who said article 32 is the soul of Indian constitution

- a) Nehru
- b) Gandhi
- c) Ambedkar ✓
- d) none of the above

40) F. Rights are borrowed from which const

- a) China
- b) Bulhan
- c) Ireland
- d) France ✓

37) which article deals with right of constitutional remedy

- a) 32 ✓
- b) 42
- c) 44
- d) 31

38) which article deals with right to freedom of religion

- a) 19-22
- b) 14-18
- c) 23-34
- d) 25-28 ✓

39) in which year 86th amendment was implemented?

- a) 1947
- b) 1949
- c) 1992 ✓
- d) 2000

40) in 86th amendment was implemented

- a) related to
- b) Ess & compulsory education ✓
- c) state govt
- d) central government
- e) none of the above

41) who is the head of state

- a) speaker
- b) President ✓
- c) Prime Minister
- d) Chief min

42) which article deals with amendment of the Indian constitution?

- a) ~~23~~ 350
- b) 360
- c) 300
- d) 368 ✓

43) how many F. Rules are notified in the constitution?

- a) 10
- b) 11 ✓
- c) 14
- d) 15

44) The word socialist was added in our Preamble by

- a) 44
- b) 42 ✓
- c) 40
- d) 41

45) who is the first Chief min of India?

- a) speaker
- b) governor
- c) Prime Minister ✓
- d) vice president

32) Federalism means
a) law of the nation ✓
b) law of govt
c) E-10 Judiciary
d) government

33) Indian states are generally restricted
a) Police state ✓ b) welfare state
c) dictatorial state d) none of these

34) How much time the constituent assembly
took to make Indian Constitution
a) 1 year 8 months 14 days
b) 2 years
c) 2 years 11 months 18 days ✓
d) 2 year

35) The Constitution declared India as
a) federal b) unitary
c) Union of states ✓ d) all of above

36) The Preamble of Indian Cons.
has been amended
a) once ✓ b) twice
c) three d) four

37) Republic means
a) freedom
b) public opinion
c) state must be an
unitary

38) F. Rights are called
a) justiciable rights ✓ b) non-justiciable
c) legal rights d) moral rights

39) Aim of BSP
a) capitalist society b) welfare state ✓
c) protect rights of
citizen d) removal of state

40) Part IV of the Indian Constitution
deals with
a) citizenship b) F. Rights
c) BSP ✓ d) central state machine

41) Under whose leadership the interim
government was formed
a) Jawahar Lal Nehru ✓ b) Sardar Patel
c) Rajendra Prasad d) Bal Gangadhar Tilak

Q4) From the constitution of India we have borrowed the scheme of supremacy ✓
a) Supreme court ✓
b) F. Rights
c) F. Right
d) F. Right

Q5) Article 44 refers to
a) Protection Directly
b) Economic Liberty
c) Welfare Personally
d) Personal Civil Right ✓

Q6) Right to Religion is one of the
a) Labour rights
b) Economic rights
c) Personal rights
d) F. Rights ✓

Q7) Parliament can amend the constitution with _____ majority
a) Simple majority
b) 3/4th majority
c) 2/3 majority ✓
d) 2/3 above

Q8) Who has right to amend constitution
Parliament

Q9) The Parliamentary system of government in India is based on the pattern of
a) France
b) France
c) England (English)
d) Canada ✓

Q10) Who was the temporary chairman of the constituent assembly? (Provisional chairman)
a) Dr. B.R. Ambedkar
b) Jawaharlal Nehru
c) Sardar Vallabhbhai Patel
d) B.R. Ambedkar ✓

Q11) Article 32 of the constitution of India is described as
a) Motion
b) Social ✓
c) Motion
d) Motion

Q12) Under the sovereignty principle in Indian Parliament
a) Supreme court
b) Parliament
c) Supreme court
d) Parliament ✓

Q13) Article _____ is defined as the guardian of F. Rights of the citizens of India
a) Article 32
b) Article 32
c) Article 32
d) Article 32 ✓

72) is assumed as the mirror of the constitution of India

- a) 1959 or
c) 1935 government of India or ✓
b) 1919 or
d) 1944 government of India or ✓

73) In which year the fundamental duty added & implemented into the constitution of India

- a) 2000
c) 2004
b) 2002 ✓
d) 2006

74) Which part of the constitution contain a provision principle (Prsp)

- a) Part I
c) Part III
b) Part II
d) Part IV ✓

75) which is the court issued to produce the dissolved prison before the court

- a) mandamus
c) Habeas
b) Habeas corpus
d) C. Warrant

76) Promotion of International peace & brotherhood is

- a) a right
c) directive principle ✓
b) a duty
d) none of these

77) The constitution of India provides for the system of government

- a) unitary
c) parliamentary ✓
b) Bicameral
d) none of these

78) The concept of the Panchayat Raj was advocated by

- a) Jawahar Lal Nehru
c) Indira Gandhi
b) Sardar Patel
d) Gandhi ✓

79) Who among the following was not a member of Constituent Assembly

- a) Mahatma Gandhi
c) Sardar Patel
b) N. Gopal Swami
d) all of the above

80) The opening word of the Preamble to the constitution is

- a) We the members
c) We the people ✓
b) We the president
d) none of these

Q48) Every right inhering in human being & for labour
wages is equally
a) Right equal ✓
b) Right as wages
c) Right as wages
d) Right as wages

Q49) Which of the following right is not
among the fundamental right
a) Right of liberty b) Right to equality
c) Right to strike ✓ d) Right to religion

Q50) The idea which governs the state is
constitution and said it
a) Plessner b) Aristotle
c) Mac Lenn ✓ d) Lord Brier

Q51) Which of the following has the power
of judicial review
a) District court b) High court
c) Supreme court ✓ d) None of these

Q52) Who was called as the architect of
Indian constitution
a) B.R. Ambedkar ✓
b) Dr. B.R. Ambedkar
c) Dr. B.R. Ambedkar
d) Dr. B.R. Ambedkar

Q53) Constitution is the 'soul of the state'
who said it
a) Plato ✓
b) Aristotle
c) Socrates
d) Aristotle

Q54) The constituent assembly was set up
in 1946 according to the
a) Cripps b) Simon Commission
c) Cabinet Mission ✓ d) Jinnah Report

Q55) Originally how many parts or there are
Indian constitution
a) 20 parts b) 22 parts ✓
c) 21 parts d) 23 parts

Q56) How many articles are there in the beginning
of our constitution
a) 340 b) 342
c) 385 d) 395 ✓

Q57) Constitution determines
a) nature & form of state b) organization, power
c) rights & duties of citizens d) all of these ✓

88) The measurement of India's remnant of
— module —
a) 4
b) 12 ✓
c) 14
d) 80

89) The President of India is — mod.
a) legal
b) ceremonial ✓
c) not governing
d) non-governing

90) In which year 1st Amendment to the
Constitution of India was made?
a) 1950
b) 1976
c) 1951 ✓
d) 1962

91) The dirnity system was introduced
by British government under — act
a) 1909
b) 1919 ✓
c) 1935
d) 1947

92) Important feature of Federal system
is
a) strong centre
b) centralisation of
power ✓
c) decentralisation
of power
d) none of the
above

93) Which part of the constitution deals
with citizenship
a) part I
b) part II ✓
c) part III
d) part IV

94) The power of judicial ~~power~~ ^{truly} ~~power~~
with the
a) Supreme court ✓
b) Parliament
c) High court
d) none of these

Quick Recap of all 3 units (last minute preparation)

in 1953, the year of the first

hardness, but

Supreme Court

the power of
ghost

limitations in political system
original powers of central state

regulate + leadership to his staff
people by listening signs & duty
of children

Constitution of main organs of established stock legislature peculiarly & judiciously.

→ longest continuous stretch
in a world
park. 470 animals including
25 polar

found 28' below surface - 1924

Supreme law of land

→ Principles →

c) ~~partial~~ partly rigid & partly flexible

→ Federal University

7. Confronting $\frac{P_1}{P_2}$ with $\frac{P_1}{P_2}$

FR-12041E

Dr. J. J. C.

generally poor) —, error to two places, and

important by most ideal

$\frac{1}{\sqrt{2}} \begin{pmatrix} 1 & i \\ 0 & 1 \end{pmatrix}$

11/10/2023

Indian Constitutional development

1854

1st The Indian Councils Act 1854

1858 Government of India Act

• end of East India Company
• power to British crown
• very appointed

• viceroys / Governor General of India
• Secretary of India along with 15 members

Indian Council Act of 1861

• Indians entered as non official members for first time in

Legislative Council
• legislative council established in Provincial Assemblies

Indian Council Act of 1892

• Indirect election
• chosen by British
• power to ask for debate on budget

Indian Council Act of 1909

• Direct elections by legislative council
• legislative council now superior legislative council

• communal representation
• 1st time reserved council of viceroys

→ Solapurda Board

Government of India Act 1919

Montagu Chelmsford system

transfer → aggr, health, culture
→ department, power affairs

Government of India Act of 1935

• Bismarckism introduced
• dyarchy (shared gov) and of 6 members of 3 Indian
• Public Service Commission established for long time

Federal structure

• divided by provinces
• provinces

• result of multiple round table conference
• and report by Simon
• out of 11, Bismarckism introduced in 6
• power's divided into

• separate electorates for muslims, hindus

• Privy Council India in

• Federal separation

• approved by

• approved by

• Removal of dyarchy
• Provincial autonomy introduced in 1937

• establishment of federal court, reserve bank of India

→ Domestic credit to foreign
after ¹⁹⁸⁰ world war 2

- • American reacted to events after World War II
- this political rejected

- Location, status & budget
- providing something to learn
- content of analysis
- consistent availability with 389 members

- 14- members from various political parties including government

Canada Act of 1935

1944

→ British Board

Partition into India

8 Pak 2m 1977 Aug 15

Protein spot

PAUL STANLEY
General
T. 6324

Governor of India

2007

- Treason: oath to British, returned, switching sides, for or against the crown

Other plan rejected: higher assessment cost
the demand for membership of the
League now published, number of local
representatives.

- Initial analysis will be

 $\frac{d}{dt} \left(\frac{1}{\rho} \right) = - \frac{1}{\rho^2} \frac{d\rho}{dt}$

- Objective - spreading sheet
- priority of communication
- limited contribution

have tried out of
a year or more and in

quench
diffuse

members of provincial legislative assembly (6.4%)

Andrius Aleckas

~~Trans~~ Constitution Assembly
9th Dec 1946

- Temporal for dealing
- Sampling constraints.
- Issues by individual
- Question by P.J.R.

389 | Membership |

Παραγωγή: 636

first meeting on 27th Dec

Chairman - R. B. Anderson

Plumieria → var. Rajaratha Prasad

389 membership

1 partition → under plan of Jun 3 1947

Full member

membership reduced to

299

Creating committee

29th August 1947

→ had 7 members including chairmans & members

first draft prepared

by B.N. Roy

Feb 1948

2 years 11 months 18 days

discuss draft and took

26th Nov 1949

implemented adopted

284 members actually present on 26th Nov 1949

→ gave their signature

→ signed declaration

20th January 1950

date of commencement of Indian constitution

significant of 26th Jan → Indian

originally had

22 parts

395 articles

9 schedules

current

25 parts

470 articles

12 schedules

Dr. B.R. Ambedkar
appointed as chairman

August 29 1947.

② Champion of F.Rights

③ Part-3 of Indian

constitution guarantee F. Rights

④ quality in society → Parliamentary system

⑤ Preamble highlights → Principles of
parliamentary
democracy

⑥ real contribution → protective discriminating
reservation policy

⑦ Part-3 & Part-4 → condition of SC & ST
& OBC.

Preamble

→ starting page of constitution / summary
starts with 'We the people of India'

Unit 2

① Indicate - secure of the constitution
starts - basic objectives sought to be
achieved by constitution

② Indicate - nature of state constitution
seek to establish

③ Indicate - aims & objectives of constitution
India should be sovereign...

IN OUR CONSTITUTIONAL ASSEMBLY
the day of November 1949 DO HERE BY ACCEPT
~~THE~~ INDIT AND GIVE TO OURSELVES THIS
CONSTITUTION

elements of Preamble
① Sovereignty :- No body control us /
independent / absolute
independence / not control
by any other. Internal on
external / India may
Independent state /
an formation of internal
external politics India
guided by national interest
not by external pressure
real independence.

② Democratic
③ Liberty
④ Equality
⑤ Fraternity
⑥ Secularism
⑦ Socialism
⑧ Justice
⑨ Republic

⑧ Constitution is a piece
of sovereignty of country

Elements of Preamble

3. Socialist

-) reducing gap b/w rich and poor (redistribution)

1. 1976, 42nd amendment incorporated socialist & secular

2. removal of inequality providing basic necessity

3. removal of socio economic imbalance providing massive justice

4. equal pay for equal work

4. Secular

1. No national religion/

no support to any religion/

neither religious nor religious

not support any particular

religion out of public fund

freedom of liberty of faith & worship

1976, 42nd amendment

4. DEMOCRATIC

1. By the people of the people for the people

2. The last line of Preamble says **END** HERE BY ACCEPT

INACT AND GIVE TO OURSELVES THIS CONSTITUTION

3. According to this line

democracy is known as

→ Government of the people by the people for the people

4. Power comes from people

5. Introduce Universal Adult Franchise (right to vote)

5. REPUBLIC

1. No hereditary ruler. King/Queen

2. Preamble declares India as Republic

3. main head of this state is President
constitution made India as republic.

JUSTICE

Political

- 1000 one vote
- 5 year term
- every 5 year election
- member of entire population
- by vote of population

Economic

- no discrimination on the basis of birth or sex
- equal distribution of wealth
- end of monopolistic control over means of production & distribution
- decentralisation of economic resources
- securing adequate employment to all

Social

- No discrimination on the basis of caste or religion
- absence of social & economic barriers
- elimination of caste & religious barriers

LIBERTY

- ① Kind of freedom / no unwarranted restriction on thought, faith, worship
- ② Freedom of individuals

Equality

- ① All are equal
- ② Equality of status & opportunity
- ③ Enforcement of rights

FRATERNITY

- ① All religions together with the feeling of brotherhood
- ② Children of the same soil and the same method

Citizenship

- ① Legal relationship between person & state where the person gives loyalty & accountability

Single citizenship

India

Dual citizenship

USA & Switzerland

Federal citizenship

citizenship by union

State citizenship

citizenship state

- ② Citizenship signifies power & membership
- ③ Provides → right to vote
- Right to contest in election

→ Fundamental Rights

Citizenship as component of constitution

- ① Born in territory of India
- ② either of whose parents first born in territory of India.
- ③ residents of territory of India for not less than 5 years after commencement

Citizenship act of 1955

The act made provision for acquisition & termination of citizenship

Acquisition of citizenship

- ① by birth
- ② by descent (i.e. blood)
- ③ Registration
- ④ naturalisation (i.e. becoming citizen of India)
- ⑤ Incorporation of territory

Termination of citizenship

- ① Giving up citizenship
- ② acquisition of citizenship of other country
- ③ Surrender by making foreign
- ④ by order of government
- ⑤ above for long period in past

Features of Indian Constitution

① longest written constitution

- avoid misunderstanding
- 395 articles, 24 schedules & 42 amendments



② Preamble

- Reason for long constitution
- ① administrative details along with judicial principles
- ② rules for both center & state
- ③ so, so → discussed problems

③ Sovereign, socialist, secular, Democratic Republic

④ Establishment of Federal Policy

Article - 54
→ India shall be a federal

Federal

unitary

central & state

supreme court
public service exam
emergency

distribution of power among states
should be union of states
states of dispute solved by supreme court

Supreme value of land $\rightarrow$ contribution

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Response	Percentage
Very much	100%
Somewhat	100%
Not a problem	0%

Response	Percentage
Very much	100%
Somewhat	100%
Not a problem	0%

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100

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100

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Age Group	Total (%)	Male (%)	Female (%)	Non-binary (%)
18-24	15	10	20	5
25-34	25	15	30	10
35-44	30	20	35	10
45-54	25	15	30	10
55-64	15	10	20	5
65+	10	5	15	5

1

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Age Group	U.S. should take action (%)	U.S. should not take action (%)
18-29	85	15
30-49	75	25
50-69	65	35
70+	70	30

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CONSTITUTIONAL RIGHTS & DUTIES

Functional Rights (Positive Jurisprudence)

→ Basic rights, to lead dignified & respectable life, fullest development of human personality

→ control unsonant actions

→ M of people meaningful

→ removal of oppressed people

→ functioning of democracy (Political democracy)

Partially 7 right Now (6)
4th right → Right to property
31 article removed - 44 amendment 1978

Classification of F. Rights

- 1 Right to equality - 14 - 18 article
- 2 Right to freedom (19-22)
- 3 Right against exploitation (23-24)
- 4 Right of freedom of religion (25-28)
- 5 Cultural & educational rights (29-30)
- 6 Right to constitutional remedies (32-35)

Right to equality

- 1 equality before law - 14 article
- 2 Prohibition discrimination - 15 article
- 3 equal opportunity - 16 article
- 4 abolition of untouchability - 17 article
- 5 abolition of titles - 18 article

Right to freedom

- 1 Freedom of speech & expression (a) assembly without harm (b) form association & union (c) move freely throughout India (d) reside & settle throughout India

Right against exploitation

- 23 article → Human trafficking
- 24 article → Employment below age 14 in dangerous operation

article 30 of constitution for minorities
31 Protection of life, personal liberty
32 Protection against discrimination

Right to
education
Art 27-30

→ concept of constitution
→ no state religion
→ equal respect & protection for all
→ no discrimination on basis of religion

→ full equal freedom of religion
→ manage religious affairs, (2a)
→ payment of tax for promotion of religion (2a)

Religious &
Educational
rights
Art 28-30

Art 29(1) → right to prefer language script, culture
Art 29(3) → no denial admission on the basis of language culture, religion (2a)

30(1) → Right to establish minority educational institution

30(2) → aid from the state fund for minority institution

Article 31 → right to property (abolished)
It is merged with Art 19(1)(f)

Right to constitutional amendment
Art 31(2) → said by amendment, Art 31(2) is void by amendment.

Art 32 → Right to move to highest court of the land, "Supreme court for enforcement of rights"

Art 33 → Religious freedom not absolute
Art 34 → no derogation of Art 32

Art 35 → Payment of taxes, levies, cesses, duties
→ Freedom of religious institutions
protected by religious institutions by state

Art 36 → Right of Tribes

Art 37 → Right of work
by Supreme court

Art 38 → Right to life
by Supreme court

FUNDAMENTAL

ARTICLES

43rd Amendment 1978

ARTICLES

Article

Article 11

IV A

Article 11

Recommendation 1978

same chapter on the citizens

SI A article

→ reminder for citizens

→ 1) report national flag & anthem

2) Follow ideas of freedom rights

3) protect India's sovereignty, unity & integrity

4) defend security

5) Promote harmony & brotherhood

6) Preserve our culture

7) Perfect environment

8) develop scientific temper & spirit of inquiry

9) safeguard public property

10) strive for excellence

11) furnish provides education to their children between 14

↑

11th Fr. Right added in 2002. 26th amendment

reminder

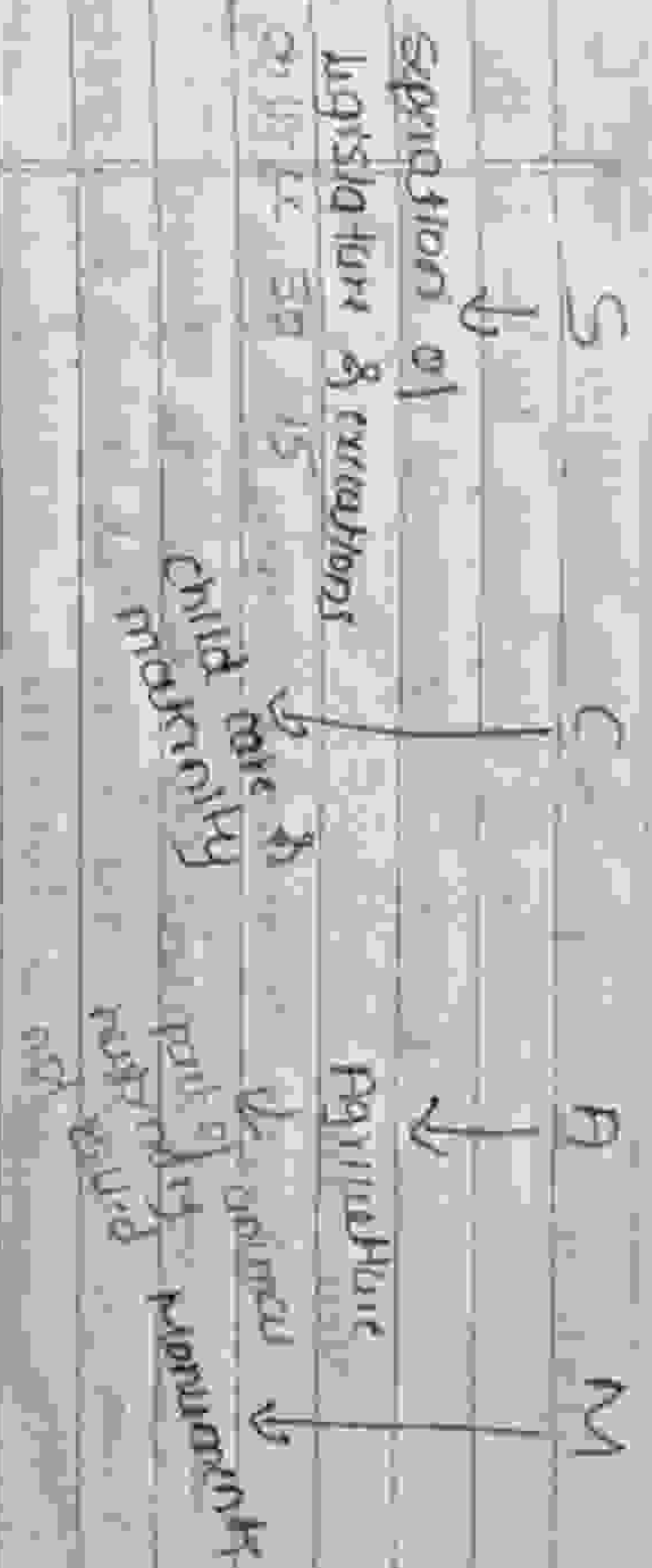
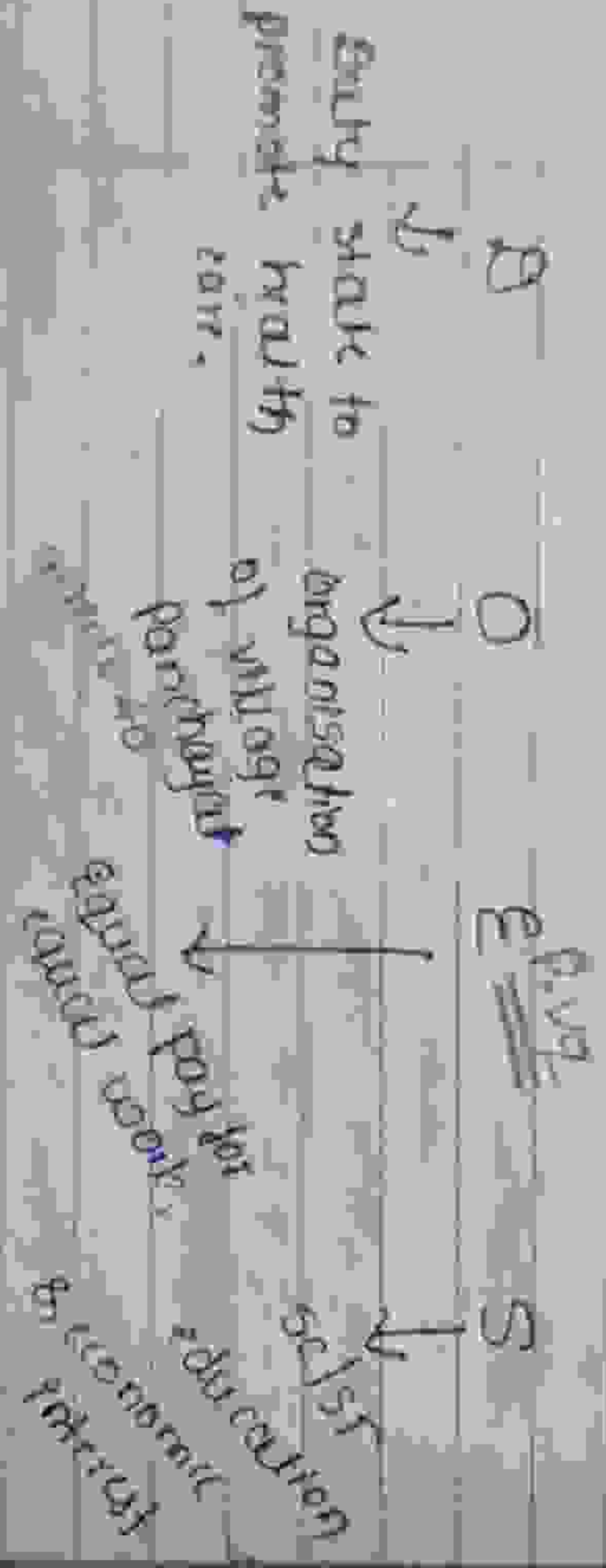
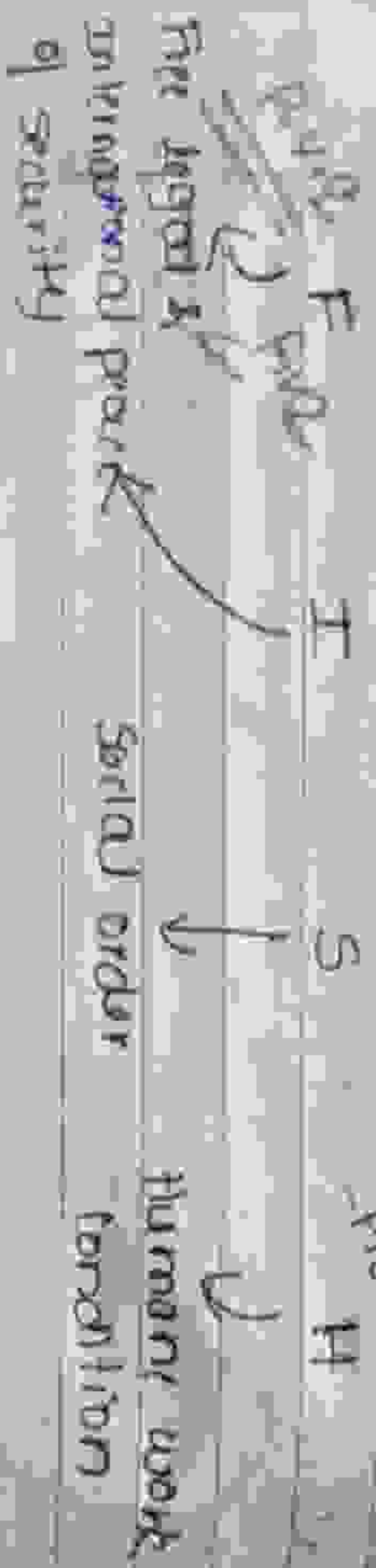
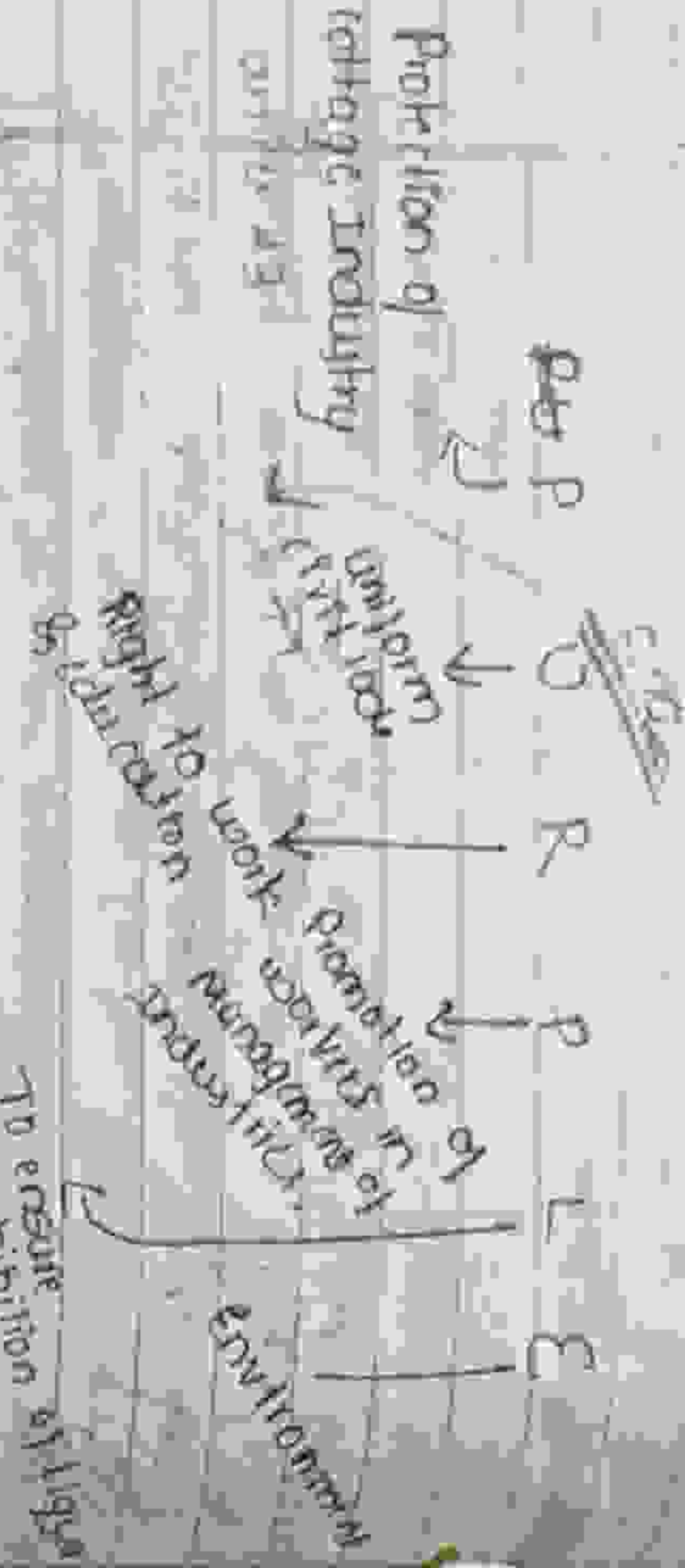
warning against burning

defending public property

national flag

PPSP → non judgemental

POPEL FISH DOES SCAM



Article 32

- empowers the Supreme Court to
issue 5 kinds of writs for the
protection & enforcement of F. Rights

They are

① Writ of Habeas Corpus (To have a body)

→ The main objective is to give a
quick and immediate relief to a person
who is illegally arrested.

not applicable for the

② Writ of Mandamus

(use order)

→ It is generally issued against
public authority who is bound to
do a public duty but refuses to
perform his duty

③ Writ of Prohibition

→ It is issued by the Supreme Court or
the High Court to a lower court not
to do what is not within its
jurisdiction

④ Writ of Certiorari (To be more
fully informed of)

→ It is issued by a superior

court (Higher Court) to a inferior
court (Lower Court) requiring the latter to
submit the record of a case pending
before it. (use writ of Quashin)

⑤ Writ of Habeas Corpus (By Joughal
authority)

→ The objective is to terminate a
person from the office which he is
not legally entitled to hold.

⑥ Writ of Habeas Corpus (By Joughal
authority)

⑦ Writ of Habeas Corpus (By Joughal
authority)